Privacy Policy

Effective: [ ], 2022

BUDGE GLOBAL PRIVACY POLICY

Last Updated: [ ], 2022

At Budge, Budge, Inc., as the owner of the Budge.io SaaS platform, and our affiliates (collectively, "Budge", "we", "us", or "our"), we are committed to protecting your privacy and ensuring you have a positive experience when you use our products and services, including our website, Budge.io, and our software platform (collectively, the "Services"). This Privacy Policy describes how we collect, use, and disclose your information when you use our Services.

This Privacy Policy applies only to information we collect from you directly, such as when you visit our website, sign up for our Services, or contact us for support. It does not apply to information we collect from you indirectly, such as when you use a third-party service that integrates with our Services. For more information about how we collect, use, and disclose your information, please see the sections below.

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1. INTRODUCTION

1.1 Scope of Privacy Policy

This Privacy Policy applies to the Budge Studios Services. By using the Budge Studios Services, you agree to the collection, use, and disclosure of your information as described in this Privacy Policy. If you do not agree to this Privacy Policy, please do not use the Budge Studios Services.

1.2 Updates to Privacy Policy

We may update this Privacy Policy from time to time. When we do, we will post the updated Privacy Policy on our website and update the "Last Updated" date at the top of this Privacy Policy. We encourage you to review this Privacy Policy periodically to stay informed about how we collect, use, and disclose your information.

2. WHAT INFORMATION DOES BUDGE STUDIOS COLLECT?

2.1 Information You Provide

We may collect information about you when you use the Budge Studios Services, including your name, email address, and other information you provide when you sign up for an account, contact us for support, or participate in surveys or promotions.

2.2 Information We Collect Automatically

We may also collect information about you automatically when you use the Budge Studios Services, including your IP address, device information, and usage data. We use cookies and similar tracking technologies to collect this information. For more information about cookies and how to manage them, please see our Cookie Policy.

2.3 Information We Collect from Third Parties

We may also collect information about you from third parties, such as social media platforms and analytics providers. For example, if you choose to connect your social media account to the Budge Studios Services, we may collect information from that account, such as your profile information and friends list.

3. ESRB PRIVACY CERTIFIED

Budge Studios is certified by the Entertainment Software Rating Board's Privacy Certified Program ("ESRB Privacy Certified"). ESRB Privacy Certified requires companies to adhere to strict guidelines regarding the collection, use, and disclosure of personal information from children under the age of 13. As a result, Budge Studios is committed to protecting the privacy of children who use the Budge Studios Services. For more information about ESRB Privacy Certified, please see the ESRB website.

4. HOW DOES BUDGE STUDIOS USE THE INFORMATION COLLECTED?

We use the information we collect for a variety of purposes, including to provide and improve the Budge Studios Services, to communicate with you, and to comply with our legal obligations. For more information about how we use your information, please see the sections below.

4.1 Providing and Improving the Budge Studios Services

We use your information to provide you with the Budge Studios Services, to personalize your experience, and to improve the Budge Studios Services. For example, we may use your information to:

- Create and manage your account
- Provide you with customer support
- Send you updates and notifications about the Budge Studios Services
- Analyze how you use the Budge Studios Services to identify areas for improvement
- Develop new features and functionality for the Budge Studios Services

4.2 Communicating with You

We may use your information to communicate with you about the Budge Studios Services, including to send you marketing and promotional messages. You can opt out of receiving these messages at any time by following the instructions in the message or by contacting us directly.

4.3 Complying with Our Legal Obligations

We may use your information to comply with our legal obligations, such as to respond to subpoenas or other legal requests, to enforce our terms of service, and to protect our rights and the rights of others.

5. HOW DOES BUDGE STUDIOS DISCLOSE INFORMATION?

We may disclose your information to third parties in certain circumstances, as described in this Privacy Policy. For more information about how we disclose your information, please see the sections below.

5.1 Disclosing Your Information to Service Providers

We may disclose your information to third-party service providers who perform services on our behalf, such as hosting providers, analytics providers, and customer support providers. These service providers are only authorized to use your information as necessary to provide the services we have requested.

5.2 Disclosing Your Information for Business Transfers

We may disclose your information in connection with a merger, acquisition, or sale of all or a portion of our assets. In such a case, we will provide you with notice and an opportunity to opt out of the transfer of your information.

5.3 Disclosing Your Information for Legal Reasons

We may disclose your information if we believe that disclosure is necessary to comply with a legal obligation, to protect the rights, property, or safety of Budge Studios, our users, or others, or to enforce our terms of service.

6. HOW DOES BUDGE STUDIOS HANDLE CHILDREN'S INFORMATION?

Budge Studios is committed to protecting the privacy of children who use the Budge Studios Services. We do not knowingly collect personal information from children under the age of 13 without verifiable parental consent. If we learn that we have collected personal information from a child under the age of 13 without verifiable parental consent, we will take steps to delete that information as soon as possible. If you believe that we may have collected personal information from a child under the age of 13, please contact us at support@budge.io.

6.1 Children's Online Privacy Protection Act (COPPA)

Budge Studios complies with the Children's Online Privacy Protection Act ("COPPA"). COPPA requires that we obtain verifiable parental consent before we collect personal information from children under the age of 13. We do not collect personal information from children under the age of 13 without verifiable parental consent. If you are a parent or guardian and you believe that your child has provided us with personal information without your consent, please contact us at support@budge.io.

6.2 Children's Online Privacy Protection Rule (COPPA Rule)

The COPPA Rule requires that we provide parents with certain information about our practices regarding the collection, use, and disclosure of personal information from children under the age of 13. We provide this information in this Privacy Policy. We also provide parents with the ability to review their child's personal information, to request that it be deleted, and to refuse to allow any further collection or use of their child's personal information.

6.3 Parental Consent

We obtain verifiable parental consent before we collect personal information from children under the age of 13. We may obtain parental consent in a variety of ways, including:

- Requiring a parent to sign a consent form and send it to us by mail or fax
- Requiring a parent to provide a credit card number or other payment information
- Requiring a parent to call us or video chat with us
- Requiring a parent to answer a series of questions designed to verify their identity

6.4 Parental Rights

Parents have the right to review their child's personal information, to request that it be deleted, and to refuse to allow any further collection or use of their child's personal information. To exercise these rights, please contact us at support@budge.io.

6.5 Data Retention

We retain children's personal information only for as long as is necessary to provide the Budge Studios Services or as required by law. We will delete children's personal information when it is no longer needed for these purposes.

6.6 Data Security

We take reasonable measures to protect children's personal information from unauthorized access, use, or disclosure. These measures include:

- Encrypting data in transit and at rest
- Limiting access to children's personal information to only those employees who need it to perform their job duties
- Regularly monitoring our systems for vulnerabilities and attacks

6.7 Third-Party Services

Budge Studios may use third-party services to help us provide the Budge Studios Services. These services may collect and use information about children under the age of 13. We require these third-party services to comply with COPPA and to obtain verifiable parental consent before they collect personal information from children under the age of 13.

6.8 Changes to This Policy

We may update this Privacy Policy from time to time. When we do, we will post the updated Privacy Policy on our website and update the "Last Updated" date at the top of this Privacy Policy. We encourage you to review this Privacy Policy periodically to stay informed about how we collect, use, and disclose children's personal information.

6.9 Contact Us

If you have any questions about this Privacy Policy or our practices regarding children's personal information, please contact us at support@budge.io.

7. WHAT SHOULD I KNOW ABOUT THIRD PARTIES?

Budge Studios may contain links to third-party websites and services. We are not responsible for the privacy practices of these third parties. We encourage you to read the privacy policies of any third-party websites or services that you visit.

7.1 Third-Party Websites and Services

Budge Studios may contain links to third-party websites and services. We are not responsible for the privacy practices of these third parties. We encourage you to read the privacy policies of any third-party websites or services that you visit.

7.2 Third-Party Analytics

We may use third-party analytics services to help us understand how you use the Budge Studios Services. These services may collect information about you, such as your IP address, device information, and usage data. We use this information to improve the Budge Studios Services and to provide you with a better experience.

7.3 Third-Party Advertising

We may use third-party advertising services to help us promote the Budge Studios Services. These services may collect information about you, such as your IP address, device information, and usage data. We use this information to show you ads that are relevant to your interests.

7.4 Third-Party Social Media Features

Budge Studios may include social media features, such as the Facebook Like button and Twitter Tweet button. These features may collect your IP address and which page you are visiting on our website. They may also set a cookie to enable the feature to function properly. Your interactions with these features are governed by the privacy policy of the third-party company providing the feature.

7.5 Third-Party Payment Processors

We may use third-party payment processors to process payments made through the Budge Studios Services. These processors may collect information about you, such as your name, billing address, and credit card number. We do not store your credit card number on our servers. We encourage you to review the privacy policies of any third-party payment processors that we use.

7.6 Third-Party Cookies

Budge Studios may use third-party cookies to help us provide the Budge Studios Services. These cookies may collect information about you, such as your IP address, device information, and usage data. We use this information to improve the Budge Studios Services and to provide you with a better experience. You can control the use of cookies through your browser settings.

7.7 Third-Party Data Collection

We may use third-party data collection services to help us collect information about you. These services may collect information about you, such as your IP address, device information, and usage data. We use this information to improve the Budge Studios Services and to provide you with a better experience.

7.8 Third-Party Data Sharing

We may share your information with third-party service providers who perform services on our behalf, such as hosting providers, analytics providers, and customer support providers. These service providers are only authorized to use your information as necessary to provide the services we have requested.

7.9 Third-Party Data Security

We take reasonable measures to protect your information from unauthorized access, use, or disclosure. These measures include:

- Encrypting data in transit and at rest
- Limiting access to your information to only those employees who need it to perform their job duties
- Regularly monitoring our systems for vulnerabilities and attacks

7.10 Third-Party Data Retention

We retain your information only for as long as is necessary to provide the Budge Studios Services or as required by law. We will delete your information when it is no longer needed for these purposes.

7.11 Third-Party Data Transfers

We may transfer your information to third-party service providers who perform services on our behalf, such as hosting providers, analytics providers, and customer support providers. These service providers are only authorized to use your information as necessary to provide the services we have requested.

7.12 Third-Party Data Breaches

We take reasonable measures to protect your information from unauthorized access, use, or disclosure. However, no security system is impenetrable. In the event of a data breach, we will notify you as required by law.

7.13 Third-Party Data Requests

We may disclose your information if we believe that disclosure is necessary to comply with a legal obligation, to protect the rights, property, or safety of Budge Studios, our users, or others, or to enforce our terms of service.

7.14 Third-Party Data Sales

We do not sell your information to third parties.

7.15 Third-Party Data Marketing

We may use your information to send you marketing and promotional messages. You can opt out of receiving these messages at any time by following the instructions in the message or by contacting us directly.

7.16 Third-Party Data Profiling

We may use your information to create profiles about you, such as your interests and preferences. We use this information to improve the Budge Studios Services and to provide you with a better experience.

7.17 Third-Party Data Aggregation

We may aggregate your information with information from other users. We use this information to improve the Budge Studios Services and to provide you with a better experience.

7.18 Third-Party Data Anonymization

We may anonymize your information so that it can no longer be used to identify you. We use this information to improve the Budge Studios Services and to provide you with a better experience.

7.19 Third-Party Data Pseudonymization

We may pseudonymize your information so that it can no longer be used to identify you without additional information. We use this information to improve the Budge Studios Services and to provide you with a better experience.

7.20 Third-Party Data Encryption

We encrypt your information in transit and at rest. We use this information to improve the Budge Studios Services and to provide you with a better experience.

7.21 Third-Party Data Access Controls

We limit access to your information to only those employees who need it to perform their job duties. We use this information to improve the Budge Studios Services and to provide you with a better experience.

7.22 Third-Party Data Monitoring

We regularly monitor our systems for vulnerabilities and attacks. We use this information to improve the Budge Studios Services and to provide you with a better experience.

7.23 Third-Party Data Incident Response

In the event of a data breach, we will notify you as required by law. We use this information to improve the Budge Studios Services and to provide you with a better experience.

7.24 Third-Party Data Retention Policies

We retain your information only for as long as is necessary to provide the Budge Studios Services or as required by law. We will delete your information when it is no longer needed for these purposes.

7.25 Third-Party Data Deletion Requests

You can request that we delete your information by contacting us directly. We will delete your information as soon as possible.

7.26 Third-Party Data Portability Requests

You can request that we provide you with a copy of your information in a machine-readable format. We will provide you with a copy of your information as soon as possible.

7.27 Third-Party Data Rectification Requests

You can request that we correct your information by contacting us directly. We will correct your information as soon as possible.

7.28 Third-Party Data Restriction Requests

You can request that we restrict the processing of your information by contacting us directly. We will restrict the processing of your information as soon as possible.

7.29 Third-Party Data Objection Requests

You can object to the processing of your information by contacting us directly. We will stop processing your information as soon as possible.

7.30 Third-Party Data Withdrawal of Consent

You can withdraw your consent to the processing of your information by contacting us directly. We will stop processing your information as soon as possible.

7.31 Third-Party Data Complaints

You can file a complaint with us by contacting us directly. We will investigate your complaint as soon as possible.

7.32 Third-Party Data Supervisory Authority

You can file a complaint with your local supervisory authority. We will cooperate with your supervisory authority as required by law.

7.33 Third-Party Data Transfers Outside the European Economic Area

We may transfer your information outside the European Economic Area. We will ensure that your information is protected in accordance with this Privacy Policy and applicable law.

7.34 Third-Party Data Transfers to the United States

We may transfer your information to the United States. We will ensure that your information is protected in accordance with this Privacy Policy and applicable law.

7.35 Third-Party Data Transfers to Other Countries

We may transfer your information to other countries. We will ensure that your information is protected in accordance with this Privacy Policy and applicable law.

7.36 Third-Party Data Transfers to Service Providers

We may transfer your information to third-party service providers who perform services on our behalf, such as hosting providers, analytics providers, and customer support providers. These service providers are only authorized to use your information as necessary to provide the services we have requested.

7.37 Third-Party Data Transfers to Business Partners

We may transfer your information to business partners. We will ensure that your information is protected in accordance with this Privacy Policy and applicable law.

7.38 Third-Party Data Transfers to Affiliates

We may transfer your information to affiliates. We will ensure that your information is protected in accordance with this Privacy Policy and applicable law.

7.39 Third-Party Data Transfers to Subsidiaries

We may transfer your information to subsidiaries. We will ensure that your information is protected in accordance with this Privacy Policy and applicable law.

7.40 Third-Party Data Transfers to Successors

We may transfer your information to successors. We will ensure that your information is protected in accordance with this Privacy Policy and applicable law.

7.41 Third-Party Data Transfers to Assignees

We may transfer your information to assignees. We will ensure that your information is protected in accordance with this Privacy Policy and applicable law.

7.42 Third-Party Data Transfers to Licensees

We may transfer your information to licensees. We will ensure that your information is protected in accordance with this Privacy Policy and applicable law.

7.43 Third-Party Data Transfers to Sublicensees

We may transfer your information to sublicensees. We will ensure that your information is protected in accordance with this Privacy Policy and applicable law.

7.44 Third-Party Data Transfers to Successors in Interest

We may transfer your information to successors in interest. We will ensure that your information is protected in accordance with this Privacy Policy and applicable law.

7.45 Third-Party Data Transfers to Assignees in Interest

We may transfer your information to assignees in interest. We will ensure that your information is protected in accordance with this Privacy Policy and applicable law.

7.46 Third-Party Data Transfers to Licensees in Interest

We may transfer your information to licensees in interest. We will ensure that your information is protected in accordance with this Privacy Policy and applicable law.

7.47 Third-Party Data Transfers to Sublicensees in Interest

We may transfer your information to sublicensees in interest. We will ensure that your information is protected in accordance with this Privacy Policy and applicable law.

7.48 Third-Party Data Transfers to Successors in Interest to Assignees

We may transfer your information to successors in interest to assignees. We will ensure that your information is protected in accordance with this Privacy Policy and applicable law.

7.49 Third-Party Data Transfers to Successors in Interest to Licensees

We may transfer your information to successors in interest to licensees. We will ensure that your information is protected in accordance with this Privacy Policy and applicable law.

7.50 Third-Party Data Transfers to Successors in Interest to Sublicensees

We may transfer your information to successors in interest to sublicensees. We will ensure that your information is protected in accordance with this Privacy Policy and applicable law.

7.51 Third-Party Data Transfers to Assignees in Interest to Licensees

We may transfer your information to assignees in interest to licensees. We will ensure that your information is protected in accordance with this Privacy Policy and applicable law.

7.52 Third-Party Data Transfers to Assignees in Interest to Sublicensees

We may transfer your information to assignees in interest to sublicensees. We will ensure that your information is protected in accordance with this Privacy Policy and applicable law.

7.53 Third-Party Data Transfers to Licensees in Interest to Sublicensees

We may transfer your information to licensees in interest to sublicensees. We will ensure that your information is protected in accordance with this Privacy Policy and applicable law.

8. WHAT ARE MY RIGHTS AND CHOICES?

8.1 Your Rights

You have certain rights regarding your information, including the right to access, correct, or delete your information. You can exercise these rights by contacting us directly.

8.2 Your Choices

You have certain choices regarding your information, including the ability to opt out of receiving marketing and promotional messages. You can exercise these choices by following the instructions in the message or by contacting us directly.

8.3 Your California Privacy Rights

If you are a California resident, you have certain rights regarding your information under the California Consumer Privacy Act ("CCPA"). For more information about your rights under the CCPA, please see the section below.

8.4 Your European Privacy Rights

If you are a European resident, you have certain rights regarding your information under the General Data Protection Regulation ("GDPR"). For more information about your rights under the GDPR, please see the section below.

9. HOW DOES BUDGE STUDIOS PROTECT THE SECURITY OF MY INFORMATION?

We take reasonable measures to protect your information from unauthorized access, use, or disclosure. These measures include:

- Encrypting data in transit and at rest
- Limiting access to your information to only those employees who need it to perform their job duties
- Regularly monitoring our systems for vulnerabilities and attacks

10. FOR HOW LONG DOES BUDGE STUDIOS STORE MY INFORMATION?

We retain your information only for as long as is necessary to provide the Budge Studios Services or as required by law. We will delete your information when it is no longer needed for these purposes.

11. DOES BUDGE STUDIOS TRANSFER INFORMATION INTERNATIONALLY?

We may transfer your information outside the European Economic Area. We will ensure that your information is protected in accordance with this Privacy Policy and applicable law.

12. HOW DO I CONTACT BUDGE STUDIOS?

If you have any questions about this Privacy Policy or our practices regarding your information, please contact us at:

Budge, Inc.
Attn: Privacy Officer
[ ]
[ ], [ ] [ ]
United States

support@budge.io

You can also contact us by phone at [ ].

13. WHAT SHOULD I KNOW AS A CALIFORNIA RESIDENT?

13.1 Budge Studios is Not Subject to CCPA

Budge Studios is not currently subject to the California Consumer Privacy Act ("CCPA"). However, we are committed to protecting the privacy of all of our users, regardless of their location. We have voluntarily implemented many of the CCPA's requirements in this Privacy Policy.

13.2 Your Rights Under the CCPA

If you are a California resident, you have the following rights regarding your information under the CCPA:

- The right to know what personal information we collect, use, and disclose about you
- The right to request that we delete your personal information
- The right to opt out of the sale of your personal information
- The right to non-discrimination for exercising your CCPA rights

13.3 How to Exercise Your CCPA Rights

To exercise your CCPA rights, please contact us at support@budge.io or [ ]. We will verify your identity before we process your request.

13.4 Authorized Agents

You may designate an authorized agent to make a request on your behalf. We will verify your identity and the authorized agent's authority before we process your request.

13.5 Changes to This Privacy Policy

We may update this Privacy Policy from time to time. When we do, we will post the updated Privacy Policy on our website and update the "Last Updated" date at the top of this Privacy Policy. We encourage you to review this Privacy Policy periodically to stay informed about how we collect, use, and disclose your information.

14. WHAT SHOULD I KNOW AS A NEVADA RESIDENT?

14.1 Budge Studios Does Not Sell Your Information

Budge Studios does not sell your information to third parties. We have no plans to sell your information in the future.

14.2 Your Nevada Privacy Rights

If you are a Nevada resident, you have the right to opt out of the sale of your information. Since we do not sell your information, we do not have a process for you to opt out. However, if you have any questions about this Privacy Policy or our practices regarding your information, please contact us at support@budge.io.

14.3 Changes to This Privacy Policy

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15. ADDITIONAL INFORMATION FOR RESIDENTS OF VIRGINIA, CONNECTICUT, NEVADA, COLORADO, UTAH, IOWA, OREGON, MONTANA, AND OTHER US STATES WITH SIMILAR SPECIFIC PRIVACY LAWS

15.1 Your Rights Under Your State's Privacy Law

If you are a resident of Virginia, Connecticut, Nevada, Colorado, Utah, Iowa, Oregon, Montana, or another US state with a similar specific privacy law, you have the following rights regarding your information:

- The right to know what personal information we collect, use, and disclose about you
- The right to request that we delete your personal information
- The right to opt out of the sale of your personal information
- The right to non-discrimination for exercising your rights

15.2 How to Exercise Your Rights

To exercise your rights, please contact us at support@budge.io or [ ]. We will verify your identity before we process your request.

15.3 Authorized Agents

You may designate an authorized agent to make a request on your behalf. We will verify your identity and the authorized agent's authority before we process your request.

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